

Hindustan Copper Limited
Corporate Office

No. Misc/13.5.1
From: GM (HR) / CO

Date: 10.12.2014
To: GM/ MCP,
GM/ Id/ KCC,
GM/ ICC,
All HoDs/ CO
DGM/ TCP,
RM/ Delhi,
RM/ Mumbai,
RM/ B'uru.

Sub: The Lokpal and Lokayuktas Act, 2013 - Submission of return on assets and liabilities by public servants

Please find enclosed O.M. no. F.No. A-42011/10/2011-Admn. dated 12.09.2014 and 05.08.2014 from Department of Public Enterprises.

As per the new guidelines, submission of returns on assets and liabilities is to be done on financial year basis, instead of the existing calendar year basis. However, for the year 2014, the return is to be submitted by 31st Dec, 2014 in physical form in prescribed Forms I to IV.

As per the Act, all the public servants are required to comply with the said requirement. Therefore, all employees of HCL, both executives and non executives are advised to submit the said return in duplicate by 31st Dec, 2014 to concerned HR department. The prescribed Forms I to IV are also available on HCL website.

Subsequently, the said return as on 31st March of the year is required to be submitted by 31st July of the concerned year. Actions have been initiated to make the submissions of return in the new formats also online and is expected that online system will be in vogue for submission of return as on 31st March, 2015.

You are requested to ensure necessary compliance in this regard by close monitoring on daily basis.

This issues with the approval of the Competent Authority.


(Naresh Kumar) 10/12/14

Encl: As above

Copy for kind information to:

1. CMD
2. Director (Personnel)
3. Director (Mining)
4. Director (Operations)
5. Director (Finance)

23/c

Government of India
Ministry of Heavy Industries & Public Enterprises
Department Of Public Enterprises

Public Enterprises Bhavan,
Block No. 14, CGO Complex,
Lodhi Road New Delhi,

Dated 12th September, 2014

Office Memorandum

Subject:-The Lokpal and Lokayktas Act, 2013 - Submission of declaration of assets and liabilities by the public servants – extending the time limit.

The undersigned is directed to refer to above mentioned subject along with DPE's OM of even no. dated 5th August 2014, wherein the content of Lokpal and Lokayuktas Act, 2013 was bring into the notice of all Ministries / Departments / Central Public Sector Enterprises (CPSEs) for compliance.

2. In continuation to above, Government has extended the time limit for filing of returns by all public servants from 15th September, 2014 to 31st December, 2014 vide its Gazette Notification dated 8th September 2014 (copy enclosed).

3. All Ministries / Departments are requested to kindly bring the contents of above stated notification to the notice of all CPSEs under their administrative control to ensure compliance within the revised time-limit mentioned therein.

Encl. as above.

To

All Administrative Ministries / Departments concerned with CPSEs and a copy each to:

- (i) Chief Executives of all CPSEs.
- (ii) Department of Personnel and Training (DoPT), North Block in reference to their DO No. 407/12/2014-AVD-IV(B) dated 08.09.2014
- (iii) NIC, Cell DPE with a request to upload a copy at DPE's web-site under the link Guidelines/Personnel Policies/service matters.
- (iv) Guard File.

Copy to: PS to Secretary, DPE.

आपनि का कार्यालय
 CMD'S OFFICE
 प्राप्त/Recd. on 10/11/14
 क्रम सं/SL No.

DPE'S OFFICE
 प्राप्त / Recd. on 12/11/14
 क्रम सं/SL No. 07.

(J.N. Prasad)
 Director

1. P.R. circulated & ensure.
 2. Finalized by finalised
 with CVO.

22/1

भारत का राजपत्र
The Gazette of India

असाधारण
EXTRAORDINARY
भाग II—खण्ड 3—उप-खण्ड (i)
PART II—Section 3—Sub-section (i)
प्राधिकार से प्रकाशित
PUBLISHED BY AUTHORITY

सं. 466] नई दिल्ली, सोमवार, सितम्बर 8, 2014/भाद्र 17, 1936
No. 466] NEW DELHI, MONDAY, SEPTEMBER 8, 2014/BHADRA 17, 1936

कार्मिक, लोक शिकायत और पेंशन मंत्रालय
(कार्मिक और प्रशिक्षण विभाग)
अधिसूचना

नई दिल्ली, 8 सितंबर, 2014

सा.का.नि. 638(अ).—केन्द्रीय सरकार, लोकपाल और लोकायुक्त अधिनियम, 2013 (2014 का 1) की धारा 44 और धारा 45 के साथ पठित धारा 59 की उप-धारा (2) के खंड (ट) और खंड (ठ) के साथ पठित उप-धारा (1) द्वारा प्रदत्त शक्तियों का प्रयोग करते-हुए, लोक सेवक (सूचना और आस्तियों तथा दायित्वों की विवरणी देने तथा विवरणियाँ फाइल करने में आस्तियों की छूट के लिए सीमाएं) नियम, 2014 का संशोधन करने के लिए निम्नलिखित नियम बनाती है, अर्थात् :—

1. (1) इन नियमों का संक्षिप्त नाम लोक सेवक (सूचना और आस्तियों तथा दायित्वों की विवरणी देने तथा विवरणियाँ फाइल करने में आस्तियों की छूट के लिए सीमाएं) संशोधन नियम, 2014 है।
(2) ये उनके राजपत्र में प्रकाशन की तारीख से प्रवृत्त होंगे।
2. लोक सेवक (सूचना और आस्तियों तथा दायित्वों की विवरणी देने तथा विवरणियाँ फाइल करने में आस्तियों की छूट के लिए सीमाएं) नियम, 2014 के नियम 3 में, उप-नियम (2) के परंतुक में, "15 सितंबर, 2014 को या उससे पूर्व" शब्दों के स्थान पर "31 दिसंबर, 2014 को या उससे पूर्व" शब्द रखे जाएंगे।

[फा. सं. 407/12/2014-एवीडी-IV(ख)भाग-I]

भास्कर खुलबे, अपर सचिव

टिप्पण: मूल नियम भारत के राजपत्र, असाधारण में अधिसूचना सं. सा.का.नि. 501(अ), तारीख 14 जुलाई, 2014 द्वारा प्रकाशित किए गए थे

MINISTRY OF PERSONNEL, PUBLIC GRIEVANCES AND PENSIONS

(Department of Personnel and Training)

NOTIFICATION

New Delhi, the 8th September, 2014

G.S.R. 638(E).—In exercise of the powers conferred by sub-section (1) read with clause (k) and clause (l) of sub-section (2) of Section 59 read with Section 44 and Section 45 of the Lokpal and Lokayuktas Act, 2013 (1 of 2014), the Central Government hereby makes the following rules to amend the Public Servants (Furnishing of Information and Annual Return of Assets and Liabilities and the Limits for Exemption of Assets in Filing Returns) Rules, 2014, namely:—

1. (1) These rules may be called the Public Servants (Furnishing of Information and Annual Return of Assets and Liabilities and the Limits for Exemption of Assets in Filing Returns) Amendment Rules, 2014.
(2) They shall come into force on the date of their publication in the Official Gazette.
2. In the Public Servants (Furnishing of Information and Annual Return of Assets and Liabilities and the Limits for Exemption of Assets in Filing Returns) Rules, 2014, in rule 3, in the proviso to sub-rule (2), for the words "on or before the 15th day of September, 2014", the words "on or before the 31st day of December, 2014" shall be substituted.

[F.No. 407/12/2014-AVD-IV(B) Pt.-I]

BHASKAR KHULBE, Addl. Secy.

Note : The principal rules were published in the Gazette of India, Extraordinary *vide* notification number G.S.R. 501(E) dated the 14th July, 2014.

20/c

F.No. A-42011/10/2011-Admn.
Government of India
Ministry of Heavy Industries & Public Enterprises
Department Of Public Enterprises

Public Enterprises Bhavan,
Block No. 14, CGO Complex,
Lodhi Road, New Delhi-110003.

Dated: 5th August, 2014

Office Memorandum

Subject: The Lokpal and Lokayktas Act, 2013 - Submission of declaration of assets and liabilities by the public servants-reg.

The undersigned is directed to refer to above mentioned subject in terms of Department of Personnel and Training (DoPT) OM No. 11013/3/2014-Estt(A) dated 23.07.2014 (copy enclosed) and to say that the Government has notified the Public Servants Rules, 2014 (Furnishing of Information and Annual Return of Assets and Liabilities and the limits for Exemption of Assets in Filing Returns) under the Lokpal and Lokayuktas Act, 2013 on 14-7-2014.

2. In this regard, it may be noted that as per Section 2(1)(o) of the Lokpal and Lokayuktas Act 2013, "Public Servant" means a person referred to in clauses (f) of sub-section (1) of section 14 of the Act.

3. All Ministries / Departments are requested to kindly bring its contents to the notice of all CPSEs under their administrative control for compliance.

Encl. As above.

To

All Administrative Ministries / Departments concerned with CPSEs and a copy each to:

- (i) Chief Executives of all CPSEs.
- (ii) Department of Personnel and Training (DoPT), North Block, New Delhi in reference to their OM No. 11013/3/2014-Estt(A) dated 23.07.2014.
- (iii) NIC, Cell DPE with a request to upload a copy at on DPE's web-site under the link Guidelines/GM/Personnel policies/CDA Rules.
- (iv) Guard File.

Copy to : PS to Secretary, DPE.

19/8

संख्या ए-42011/10/2011-प्रशासन

भारत सरकार

भारी उद्योग और लोक उद्यम मंत्रालय

लोक उद्यम विभाग

लोक उद्यम भवन

ब्लॉक नं. 14, सी जी ओ काम्प्लेक्स,
लोधी रोड, नई दिल्ली-110 003.

दिनांक: 5 अगस्त, 2014

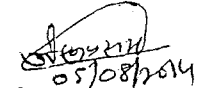
कार्यालय-ज्ञापन

विषय : लोकपाल एवं लोकायुक्त अधिनियम, 2013 – लोक सेवकों द्वारा परिसम्पत्तियों तथा देयता की घोषणा करने - के संबंध में

अधोहस्ताक्षरी को कार्मिक और प्रशिक्षण विभाग के दिनांक 23-07-2014 के कार्यालय ज्ञापन सं. – 11013/3/2014 स्था. (क) के सन्दर्भ में उपर्युक्त विषय का संदर्भ लेने तथा यह कहने का निदेश हुआ है कि सरकार ने 14.07.2014 को लोकपाल एवं लोकायुक्त अधिनियम, 2013 के अन्तर्गत लोक सेवक नियमावली, 2014 (परिसम्पत्ति एवं देयता तथा रिटर्न भरने में परिसम्पत्तियों में छूट की सीमा के बारे सूचना तथा वार्षिक रिटर्न भरना) अधिसूचित किया है।

2. इस संबंध में यह उल्लेखनीय है कि लोकपाल एवं लोकायुक्त अधिनियम, 2013 की धारा 2(1)(0) के अनुसार "लोक सेवक" का आशय ऐसे व्यक्ति से है जिसका इस अधिनियम की धारा 14 की उप-धारा (1) के खंड (च) में उल्लेख किया गया है।

3. सभी मंत्रालयों/विभागों से अनुरोध है कि वे इस विषय को अपने प्रशासनिक नियंत्रण के अधीन सभी केन्द्रीय सरकारी लोक उद्यमों के अनुपालन हेतु उनकी जानकारी में लाएं।


05/08/2014
जे. एन. प्रसाद
(निदेशक)

फोन :24360736

अनुलग्नक : यथोक्त

सभी केन्द्रीय सरकारी लोक उद्यमों से संबंधित प्रशासनिक मंत्रालयों / विभागों को तथा एक प्रति :

- (i) सभी केन्द्रीय सरकारी लोक उद्यमों के मुख्य कार्यकारी अधिकारी
- (ii) कार्मिक एवं प्रशिक्षण विभाग, नार्थ ब्लॉक, नई दिल्ली के उनके का. ज्ञा. सं. 11013/3/2014-स्था(ए) तारीख 23.07.2014 के संदर्भ में
- (iii) एन आई सी कक्ष, लोक उद्यम विभाग को इस अनुरोध के साथ कि वे लिंक गार्डलाइन्स / जीएम / कार्मिक नीतियों / सीडीए नियमावली पर इस प्रति को अपलोड करें।
- (iv) गार्ड फाइल

प्रतिलिपि: सचिव, लोक उद्यम विभाग के निजी सचिव

18/c

F. No. 11013/3/2014-Estt(A)
Ministry of Personnel, Public Grievances & Pensions
Department of Personnel and Training
Establishment Division

North Block, New Delhi
Dated July 23, 2014

Subject: The Lokpal and Lokayuktas Act, 2013 - Submission of declaration of assets and liabilities by the public servants for each year and placing the same in public domain on the websites of the Ministries/ Departments

The undersigned is directed to refer to the subject mentioned above and to say that the Government has notified the Public Servants (Furnishing of Information and Annual Return of Assets and Liabilities and the limits for Exemption of Assets in Filing Returns) Rules, 2014 under the Lokpal and Lokayuktas Act, 2013. on 14.07.2014. The same is available on this Department's website at http://persmin.nic.in/Lokpal_Homepage_New.asp.

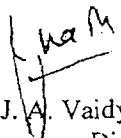
2. As per the said Act and the Rules framed thereunder, every public servant shall file declarations, information or return, as the case may be regarding his assets and liabilities as on the 31st day of March every year, to the competent authority, on or before the 31st day of July of that year. It may be noted that as per Section 2(1)(o) of the Act, "Public Servant" means a person referred to in clauses (a) to (h) of sub-section (1) of section 14 of the Act but does not include a public servant in respect of whom the jurisdiction is exercisable by any court or other authority under the Army Act, 1950, the Air Force Act, 1950, the Navy Act, 1957 and the Coast Guard Act, 1978 or the procedure is applicable to such public servant under those Acts.

3. It may also be noted that the definition of public servant covers all Central Government servants (Groups A, B and C). Therefore, all Central Government servants are required to file the declaration. This is an important difference from the Central Civil Services (Conduct) Rules 1964 and may kindly be noted.

4. As per these Rules, the public servants who have filed declarations, information and annual returns of property under the provisions of the rules applicable to such public servants shall file the revised declarations, information or as the case may be, annual returns as on the 1st day of August, 2014, to the competent authority on or before, the 15th day of September, 2014. All Ministries/ Departments are, accordingly, requested to please bring the provisions of the Public Servants (Furnishing of Information and Annual Return of Assets and Liabilities and the limits for Exemption of Assets in Filing Returns) Rules, 2014, to the notice of all concerned for compliance.

5. Formal amendment to the Central Civil Services (Conduct) Rules 1964 will be made in due course.

6. Hindi version will follow.


(J. A. Vaidyanathan)
Director (E)
Telefax: 2309 3179

To

The Secretary
All Ministries/ Departments

17/4

--2--

Copy to:-

1. Comptroller and Auditor General of India, New Delhi
2. Lok Sabha Secretariat/ Rajya Sabha Secretariat/ Ministry of Parliamentary Affairs
3. Union Public Service Commission, New Delhi.
4. President's Secretariat/ Vice-President's Secretariat/ Prime Minister's Office.
5. Election Commission of India, New Delhi.
6. Central Vigilance Commission, New Delhi
7. The CVOs of all Ministries/ Departments
8. Staff Selection Commission, New Delhi
9. Central Bureau of Investigation, New Delhi
10. All Attached and Subordinate Offices of the Ministry of Personnel, Public Grievances and Pensions
11. All Officers and Sections in the Ministry of Personnel, PG and Pensions
12. NIC (DOPT) with the request to place this O.M. in the Department's website

16/c

APPENDIX-I
[Rule 3(1)]

Return of Assets and Liabilities on First Appointment or as on the 31st March, 20.....*
(Under Sec 44 of the Lokpal and Lokayuktas Act, 2013.)

1. Name of the Public servant in full.....
(in block letters)
- 2.(a) Present public position held
(Designation, name and address
of organisation)
- (b) Service to which belongs
(if applicable)

Declaration:

I hereby declare that the return enclosed namely, Forms I to IV are complete, true and correct to the best of my knowledge and belief, in respect of information due to be furnished by me under the provisions of section 44 of the Lokpal and Lokayuktas Act, 2013.

Date.....

Signature.....

* In case of first appointment please indicate date of appointment.

Note 1. This return shall contain particulars of all assets and liabilities of the public servant either in his/her own name or in the name of any other person. The return should include details in respect of assets/ liabilities of spouse and dependent children as provided in Section 44 (2) of the Lokpal and Lokayuktas Act, 2013.

(Section 44(2):A public servant shall, within a period of thirty days from the date on which he makes and subscribes an oath or affirmation to enter upon his office, furnish to the competent authority the information relating to—

- (a) the assets of which he, his spouse and his dependent children are, jointly or severally, owners or beneficiaries;
(b) his liabilities and that of his spouse and his dependent children.)

Note 2. If a public servant is a member of Hindu Undivided Family with co-parcenary rights in the properties of the family either as a 'Karta' or as a member, he should indicate in the return in Form No. III the value of his share in such property and where it is not possible to indicate the exact value of such share, its approximate value. Suitable explanatory notes may be added wherever necessary.

Note 3:— "dependent children" means sons and daughters who have no separate means of earning and are wholly dependent on the public servant for their livelihood. (Explanation below Section 44(3) of Lokpal and Lokayuktas Act, 2013)

FORM No. I

Details of Public Servant, his/ her spouse and dependent children

SL No.		Name	Public Position held, if any	Whether return being filed by him/her, separately
1	Self			
2	Spouse			
3	Dependent-1			
4	Dependent-2			
5.*	Dependent-3			

* Add more rows, if necessary.

Date.....

Signature.....

14/c

FORM No. II

Statement of movable property on first appointment or as on the 31st March, 20...

Details of the movable assets of self, spouse and dependent children:

Sl. No.	Description		Amount in Rupees				
			Self	Spouse	Dependent 1	Dependent 2	Dependent 3
(i)	Cash in hand						
(ii)	Details of deposit in Bank accounts (FDRs, Term Deposits and all other types of deposits including saving accounts), Deposits with financial Institutions, Non-Banking financial Companies and Cooperative societies and the amount in each such deposit	Name of Bank/ Financial Institutions. & Nature of Deposit					
(iii)	Details of investment in Bonds, debentures / shares and units in companies/mutual funds and others	Name of company					
(iv)	Details of investment in NSS, Postal Saving, Insurance policies and investment in any Financial instruments in Post office or Insurance Company	Nature of investment					
(v)	Detail of deposit in Provident Fund/ New Pension Scheme	Nature of Investment					
(vi)	Personal loans/ advance given to any person or entity including firm, company, Trust etc. and other receivables from debtors and the amount (exceeding (a) two months basic pay, where applicable. (b) Rupees one lakh in other cases)	Name of Debtor					
(vii)	Motor Vehicles/Aircrafts/Yachts/ Ships (Details of Make, registration number etc., year of purchase and amount)	Nature of vehicle, registration no. & year of purchase					

13/c

(viii)	Jewellery, bullion and valuable thing(s) (give details of weight) JEWELLERY	Gold					
		Silver					
		Precious stones/ precious metals					
	*** Bullion	Gold					
		Silver					
		Precious stones/ precious metals					
(ix)	Any other assets						

Date.....

Signature.....

Note 1: Assets in joint name indicating the extent of joint ownership will also have to be given.

Note 2: In case of deposits/Investments, the details including Amount, date of deposit, the scheme, Name of the Bank/Institution and Branch are to be given

Note 3. Value of Bonds/Share Debentures as per current market value in Stock exchange in respect of listed companies and books values in case of unlisted firms.

Note 4. Details including amount is to be given separately in respect of each investment.

Note 5: Under (ix) details of movable assets not covered in (i) to (viii) above valuing individually over two months basic pay (where applicable), or Rs. 1.00 lakh may be indicated.

FORM NO. III

Statement of immovable property on first appointment or as on the 31st March, 20....
(e.g. Lands, House, Shops, Other Buildings, etc.)

[Held by Public Servant, his/her spouse and dependent children]

Sl. No.	Description of property (Land/ House/ Flat/ Shop/ Industrial etc.)	Precise location (Name of District, Division, Taluk and Village in which the property is situated and also its distinctive number, etc.)	Area of land (in case of land and buildings)	Nature of land in case of landed property	Extent of interest	If not in name of public servant, state in whose name held and his/her relationship, if any to the public servant	Date of acquisition	How acquired (whether by purchase, mortgage, lease, inheritance, gift or otherwise) and name with details of person/persons from whom acquired (address and connection of the Government servant, if any, with the person/persons concerned) (Please see Note 1 below) and cost of acquisition.	Present value of the property (If exact value not known, approx value may be indicated)	Total annual income from the property	Remarks
1	2	3	4	5	6	7	8	9	10	11	12

Date.....

Signature.....

Note (1) For purpose of Column 9, the term "lease" would mean a lease of immovable property from year to year or for any term exceeding one year or reserving a yearly rent. Where, however, the lease of immovable property is obtained from a person having official dealings with the Government servant, such a lease should be shown in this Column irrespective of the term of the lease, whether it is short term or long term, and the periodicity of the payment of rent.

11/c

FORM No. IV

Statement of Debts and Other Liabilities on first appointment or as on 31st March, 20.....

Sl. No.	Debtor (Self/ Spouse or dependent children)	Amount	Name and address of Creditor	Date of incurring Liability	Details of Transaction	Remarks
1	2	3	4	5	6	7

Date

Signature.....

Note 1: Individual items of loans not exceeding two months basic pay (where applicable) and Rs. 1.00 lakh in other cases need not be included.

Note 2: The statement should also include various loans and advances (exceeding the value in Note 1) available from the employer like advance for purchase of conveyance, house building advance, etc. (other than advances of pay and traveling allowance), advance from the GP Fund and loans on Life Insurance Policies and fixed deposits.